DAILY EDITORIAL SUMMARY

29th April 2026

Topics to be covered:

- ✓ **VIP Culture in India**
- ✓ **Right to Education (RTE) Act & Social Inclusion**
- ✓ **The Recusal Test: The Delhi High Court Failed**

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Topics

VIP Culture in India

GS PAPER II: Government policies and interventions for development in various sectors and issues arising out of their design and implementation.

Context:

VIP culture in India is **described as a "colonial hangover"** where the style of governance has not shifted from ruling subjects to serving citizens.

- Despite the formal end of British rule, an **"administrative inertia" persists** within the bureaucracy and political class, often manifesting as an empathy deficit in governance.

About VIP Culture:

- **VIP culture refers to special or preferential tr**eatment given to individuals (politicians, bureaucrats, celebrities) in public spaces like hospitals, temples, and traffic. Examples include political convoys blocking traffic, bypassing tolls, or using government vehicles for personal family use.
- **Historical and Global Origin:** The term **"VIP" gained popularity in the 1930s during World War II** and was linked to feudal systems where local leaders with military strength received special treatment.

Common Manifestations of VIP Culture

- Bypassing queues at airports, hospitals, and temples
- Traffic halted for political convoys
- Toll-free passage for officials (hundreds of exempt categories)
- Misuse of government vehicles for personal errands
- Reserved 'VIP Lines' even in religious spaces (e.g., Lalbaugcha Raja)

Timeline

- Pre-1947: Colonial *Mai-Baap* culture
- 1930s: "VIP" term coined globally
- 1947: ICS → IAS; culture persists
- 2017: Red Beacon Ban
- Today: VIP → EPI push

Ethical and Legal Concerns:

- **Article 14:** Violates **Equality Before Law** as reality shows significant "de facto" inequality.
- **Article 21:** Threatens the **Right to Life and Dignity**; for instance, when a VIP convoy delays an ambulance in traffic.
- **Environmental Ethics:** A single VIP-related traffic jam in Delhi can emit 107 metric tons of CO_2, costing approximately ₹44 lakhs.
- **Utilitarianism:** It fails the principle of the "greatest good for the greatest number" by inconveniencing thousands for the comfort of a few.
- **Empathy Deficit in Governance:** Lack of sensitivity toward commuters, patients, and workers reflects weak ethical governance.
- **Perception of Elitism:** The visible **display of privileges such as convoys, road clearances,** and special access **creates a perception that a ruling elite exists,** separate from the common people. This widens the psychological gap between citizens and those in power.

Why Does VIP Culture Persist?

- **Genuine Security Requirements:** High-ranking **officials face real security threats**, making it difficult to completely eliminate road clearances and convoy systems without compromising safety.
- **Political Resistance:** Those who benefit from such privileges are often decision-makers themselves, leading to reluctance in enforcing strict reforms.

- **Administrative Inertia:** Bureaucratic systems **tend to follow established protocols,** and changing long-standing practices requires strong political will and systemic reforms.
- **Public Acceptance and Social Conditioning:** Many citizens have internalized hierarchical behavior, often accepting or even encouraging VIP privileges as a norm.
- **Weak Enforcement of Rules:** Even when guidelines exist (e.g., restrictions on beacons or convoys), implementation remains inconsistent across states and cities like Mumbai.

Steps taken to check VIP Culture:

- **Ban on Red Beacons (2017 Reform):** The Government **banned the use of red beacons atop vehicles of officials,** except for emergency services, to curb visible symbols of privilege and promote equality.
- **Rationalisation of Security Cover:** Security arrangements (Z+, Z, etc.) are now periodically reviewed based on threat perception to avoid unnecessary deployment of large convoys.
- **Digitisation and Queue Systems:** Introduction of online booking and token systems in public offices reduces the need for preferential treatment.

Moral Thinkers & Ethical Leadership

Mahatma Gandhi — Ethics of Trusteeship

- Public officials are trustees of power, not its owners.
- Government resources are a **public trust**, not a personal privilege.
- Gandhi's principle of **Simple Living, High Thinking** directly challenges VIP excess.

Swami Vivekananda

"They alone live who live for others."

- True public service is about **serving others**, not displaying authority through personal comfort or privilege.

Real-World Examples of Ethical Leadership

- **Lal Bahadur Shastri:** As Prime Minister, took a bank loan to buy his personal car, refusing misuse of government vehicles.
- **Dr. A.P.J. Abdul Kalam:** Refused to sit on a **specially elevated chair** at a public event, upholding the principle of equality.

Way Forward:

The sources suggest strict penalties for unnecessary convoy disruptions, installing cameras in VIP vehicles for accountability, and shifting from a "ruler" mindset to a "public servant" mindset based on Mahatma Gandhi's concept of trusteeship.

Mains Practice:

Q. VIP culture in India is a manifestation of colonial hangover and an empathy deficit in governance. Analyse its ethical dimensions in the context of democratic values and suggest measures to foster a citizen centric administration. (250 Words, 15 Marks)

Right to Education (RTE) Act & Social Inclusion

GS II: Issues related to Education

Context:

The RTE Act, 2009, operationalising **Article 21A**, aims to provide free and compulsory education while promoting **social inclusion**, especially through the **25% reservation in private schools (Section 12(1)(c))**.

About Right to Education (RTE) Act:

- The **Right to Education (RTE) Act, 2009** implements **Article 21A**, guaranteeing free and compulsory education to children **aged 6–14 years.**

- **Section 12(1)(c) — The Heart of the Act**
  - Every **private unaided school** must reserve a **minimum 25% seats** at the **entry-level class (Class 1/KG)** for **EWS & Disadvantaged Groups**.
- **Research Findings:** Studies (such as Rao & Gautam) show that mixed classrooms do not negatively impact school performance or discipline; instead, they improve the life outcomes of EWS students, with a **90% retention rate**.

Philosophy of Social Inclusion

- At its core, RTE promotes **integrated classrooms** where children from diverse socio-economic backgrounds learn together.
- **The Supreme Court (2026) clarified** that this is not an act of charity but a **deliberate constitutional strategy** to ensure **equality of status and opportunity**, fostering empathy, dignity, and social cohesion
- **Impact on Social Capital:** Access to elite private schools allows disadvantaged children to build **"social capital"** through peer networks and higher aspirations, helping them break the cycle of poverty—a concept linked to Pierre Bourdieu.

Significance

- **Social Integration:** Mixed classrooms foster equality, empathy, and social cohesion among children.
- **Breaking Inequality:** Enhances **social mobility** by providing access to quality education and networks.
- **Constitutional Mandate:** Recognised as a **state obligation**, not charity, by the Supreme Court.

Challenges

- Infrastructure gaps in government schools driving preference for private institutions
- **Delayed reimbursements** to private schools
- **Hidden costs** (uniforms, books, transport) burdening poor families
- Uneven implementation and **weak grievance redressal**
- Resistance from private institutions

Way Forward:

- **Enforceable Rules + Penalties:** Moral persuasion is insufficient; strict legal compliance is needed.
- **Digital Admission (MIS):** Rajasthan, Gujarat, Delhi model — digitize nationwide for transparency.
- **Timely Reimbursements & Cover Hidden Costs:** The government must pay private schools on time; the state should cover uniform/book costs.

Conclusion:

RTE is a **powerful tool for inclusive growth,** but its success depends on effective implementation and complementary strengthening of public education systems.

Mains Practice:

Q. Section 12(1)(c) of the RTE Act is often mis-constructed as the state's retreat from public education, whereas it is actually a deliberate constitutional strategy for social integration. Critically analyse this statement in light of recent observations by the Supreme Court. (250 Words, 15 Marks)

The Recusal Test: The Delhi High Court Failed

GS Paper II: Structure, Organization and Functioning of Judiciary

Context:

The discussion centers on the **Delhi Liquor Policy Case** (*CBI vs. Kuldeep Singh & Others*), where the accused, former Delhi Chief Minister **Arvind Kejriwal**, sought the recusal of **Justice Swarana Kanta Sharma**. Kejriwal filed a petition to transfer the case to another bench, arguing that a fair trial was not expected under the current bench.

About Recusal:

- It occurs when a judge withdraws from a case due to a **conflict of interest**, ensuring that "justice is not only done but seen to be done".
- It is rooted in the principle of **Natural Justice**—specifically *Nemo judex in causa sua* (no one should be a judge in their own cause).

Key Concepts

- **Reasonable Apprehension of Bias:** The standard that if a party has a logical, even if small, doubt that a judge might not be fair, it serves as a ground for recusal.
- **Doctrine of Necessity:** A rare exception where a judge must hear a case despite a potential conflict because no other alternative judge or forum is available to ensure the administration of justice.
- **Appearance of Impropriety:** The idea that justice must not only be done but must also be seen to be done; any perception of a lack of integrity can undermine public trust.

Kejriwal raised four primary arguments for the recusal:

1. **Adverse Orders:** The judge had previously made statements or issued orders against him in the same case.
2. **Ideological Bias:** Allegations that the judge participates in the *Akhil Bhartiya Advokta Parishad*, an organization associated with the ruling BJP.
3. **Conflict of Interest:** It was alleged that the judge's children are panel advocates who receive cases from the **Solicitor General**, who is the same individual representing the CBI against Kejriwal.
4. **Political Statements:** Comments made by the Home Minister regarding the case's progress in the High Court created a perception that a specific outcome was predetermined.

Landmark Cases and Precedents

- The sources highlight several domestic and international precedents regarding judicial conduct and recusal:

Global Precedents

- **Lord Bowen's / Caesar's Wife Principle:** If there is any doubt regarding a judge's impartiality, they should distance themselves from the case to maintain an image "above suspicion".
- **R vs. Sussex Justices (1923 - UK):** Established the classic legal maxim that **"justice should not only be done but should manifestly and undoubtedly be seen to be done"**.
- **Bangalore Principles of Judicial Conduct (2002):** A global standard outlining six core values: **Independence, Impartiality, Integrity, Propriety, Equality, and Competence & Diligence**.

Indian Landmark Cases

- **Ranjit Thakur vs. Union of India (1987):** The Supreme Court emphasized that judges must check their own biases to avoid creating concerns for the entire judiciary.
- **PK Ghosh vs. JG Rajput (1995):** Ruled that if a litigant raises a "reasonable doubt" with logic, the judge should recuse to maintain public trust.
- **State of Punjab vs. Davinder Pal Singh Bhullar (2011):** Held that an "appearance of bias" is sufficient for recusal and does not require absolute proof.
- **Supreme Court Advocates-on-Record Association vs. Union of India (2015 - NJAC Case):** Upheld the Bangalore Principles; although the judges heard the case under the "Doctrine of Necessity" because it involved the appointment of the judiciary itself, the principles of impartiality remained paramount.
- **Indore Development Authority vs. Manohar Lal (2019):** A rare case where **Justice Arun Mishra** did not recuse, citing a "duty to sit" when the demand for recusal was deemed a tactic to choose a favorable bench.

Analysis of the Delhi High Court's Decision

The writer critiques the Delhi High Court for failing the "recusal test". Despite the arguments presented, Justice Sharma issued a "self-defensive judgment" and refused to recuse.

Key points of analysis include:

- **Violation of Natural Justice:** By not withdrawing despite a personal conflict (via the children's professional connection to the Solicitor General), the ruling is seen as a violation of natural justice.
- **Weak Legal Standards:** The judge used a "straw man argument," suggesting that children of judges have a right to practice law, which the writer argues misses the specific point about the **direct professional link** to the prosecutor in this case.
- **Public Perception vs. Legal Proof:** While there might not be a codified law for recusal, the ethical standard requires a judge to step back if a party shows a "reasonable apprehension" of bias, a standard the court reportedly failed to meet here.

Conclusion

- Judicial recusal in India is **not codified by the Constitution or any specific law**; it remains a decision based purely on **legal ethics and judicial discretion**.
- The sources conclude that for a democracy to function, there must be **social equality and public trust** in the judiciary.
- Failure to recuse in the face of logical doubts, as seen in the Delhi case, risks diminishing that trust and undermines the **"appearance of impartiality"** necessary for a fair justice system.

Mains Practice

Q. The law on judicial recusal in India is more an ethical issue than a technical one. In light of recent events, discuss the principles governing judicial recusal in India. Do you think there is a need to codify these rules?

(250 Words, 15 Marks)

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